Reading this thoughtful opinion of a great judge, who started his career as a journalist, from a double point of view—both as citizen in a democratic state and as the head of an national intelligence organization—I conclude that the gist of Justice Stewart's ruling is that in a democratic society, which accords much weight to the freedom of debate and freedom of the press, preserving national security is not about a police state imposing restrictions but rather about the existence of a consensus, both within the government and outside it, regarding the need to protect certain types of information from exposure. The US Constitution recognizes the dual responsibility of maintaining freedom of speech while also protecting national security by restricting freedom of speech. And it expects the compliance of the judicial, executive, and legislative branches, as well as that of the "fourth estate," which is the media.

Is there such a consensus in Israel? Does Israel's "fourth estate" comply to any degree?

Friends of mine from the world of media accuse me of being naive, asking, "Are you not aware that the sources of the leaks are politicians and army officers? Do MI's periodic assessments just make their own way to journalists (usually specific ones) prior to their official publication, or are there those who want to leak them? Was Daniel Ellsberg, who released the Pentagon Papers, an irresponsible traitor or a patriot who did a great service for American national security? And why don't you mention the comments made to the media by Mossad chief Dagan, Shin Bet chief Diskin, and IDF chief of staff Ashkenazi on the subject of attacking Iran's nuclear sites, when they thought that such an attack would bring unprecedented disaster on Israel? When they feared that the prime minister and defense minister were leading Israel toward suicide, was it not their duty to take action by all means necessary, including via the media? And what about Snowden—traitor or patriot?" Here are some of my responses to these issues.

First, it is a mistake to make an equal comparison of these issues between the United States and Israel, because the test is not one that is universal, but rather one based on the outcome of the expected damage. The United States, because of its size and power, can absorb a kind of damage that Israel cannot. Second, Ellsberg, Snowden, and their ilk in the United States, because of their roles and status, were not able to take into account all of the variables needed to justify the kind of decisions they made. It is clear to me that activity within the framework of the tools that Western democracy